

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF NURUSHEV AND OTHERS v. RUSSIA

(Applications nos. 46570/18 and 24 others –
see appended list)

JUDGMENT

STRASBOURG

22 February 2024

This judgment is final but it may be subject to editorial revision.



In the case of Nurushev and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 1 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65 as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention, and declares the remainder of the applications inadmissible;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 22 February 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	46570/18 19/09/2018	**Ruslan Urazbayevich NURUSHEV** 1973		March "Strike of electors" Volgograd 28/01/2018 Rally in support of Mr A. Navalnyy Volgograd 23/01/2021 Rally in support of Mr A. Navalnyy Volgograd 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000 fine of RUB 10,000	Volgograd Regional Court 21/03/2018 Volgograd Regional Court 18/02/2021 Volgograd Regional Court 24/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.30 p.m. on 28/01/2018 to an unspecified time, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Volgograd Regional Court, 21/03/2018, 18/02/2021 and 24/02/2021, Art. 10 (1) - conviction for making calls to participate in public events - calling on participation in the anti-war rally by posting a call on social network on 02/03/2022 in Volgograd. The applicant was convicted under article 20.2. § 8 of the CAO, to an administrative detention of 15 days, final decision: Volgograd Regional Court,10/03/2022.	5,000
2.	36922/21 16/07/2021	**Valentina Aleksandrovna YAKUNINA** 1976	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Rostov-on-Don 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 11,000	Rostov Regional Court 11/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. on 31/01/2021 to 11.30 a.m. on 01/02/2021;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Rostov Regional Court, 11/03/2021.	
3.	40459/21 27/07/2021	**Olesya Yuryevna CHERNETSKAYA** 1970	Shindyapin Arkadiy Vitalyevich Moscow	Rally in support of Mr A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 4 days	Moscow City Court 16/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 16/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 01/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
4.	40494/21 30/07/2021	**Yevgeniy Aleksandrovich PEREVEZENTSEV** 1984	Shimovolos Sergey Mikhaylovich Nizhniy Novgorod	Rally in support of Mr A. Navalnyy Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 28/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.05 p.m. to 7.00 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Nizhniy Novgorod Regional Court, 28/05/2021.	4,000

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5.	40939/21 24/07/2021	**Maksim Mikhaylovich KORNIYENKO** 2002	Bochilo Anna Yevgenyevna Barnaul	Rally in support of Mr A. Navalnyy Kursk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Kursk Regional Court 20/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.00 p.m. to 6.00 p.m. on 31/01/2021; the applicant's deprivation of liberty was not recorded, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Kursk Regional Court, 20/04/2021.	4,000
6.	41407/21 04/08/2021	**Mikhail Sergeyevich PANKRATOV** 1983	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally in support of Mr A. Navalnyy Volgograd 23/01/2021 Rally in support of Mr A. Navalnyy Volgograd 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Volgograd Regional Court 18/02/2021 Volgograd Regional Court 03/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 3.00 p.m. on 23/01/2021 to 00.30 a.m. on 24/01/2021, - from 12.15 a.m. to 8.30 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Volgograd Regional Court, 18/02/2021 and 03/03/2021.	4,000
7.	42744/21 07/08/2021	**Yevgeniy Aleksandrovich MILYAKOV** 1999		Rally in support of Mr A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 8 days	Moscow City Court 17/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.27 a.m. on 31/01/2021 to 11.30 a.m. 01/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 17/06/2021,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
8.	43251/21 18/08/2021	**Kirill Alfredovich IMASHEV** 1998		Commemorating the anniversary of the revolution Perm 07/11/2020 Environmental rally (for a forest protection) Perm 14/02/2021 Opposition rally Perm 31/07/2021	article 20.2 § 5 of CAO article 20.2 § 2 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 fine of RUB 20,000 administrative detention of 15 days	Perm Regional Court 02/03/2021 Perm Regional Court 30/04/2021 Perm Regional Court 05/08/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 4.05 p.m. to 7.20 p.m. on 07/11/2020, - from 11.15 a.m. on 26/09/2021 to 27/09/2021, hearing in the applicant's administrative-offence case, - from 10.00 a.m. to 2.00 p.m. on 18/02/2021, - from 2.20 p.m. to 6.00 p.m. on 31/07/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Perm Regional Court, 02/03/2021, 30/04/2021 and 05/08/2021, Perm Regional Court, Art. 10 (1) - conviction for making calls to participate in public events - calls on the internet on 10/02/2021 to participate in an unauthorised public rally for protection of a forest in the Perm Region; conviction under article 20.2 § 2 of the CAO to a fine of RUB 20,000; final decision: Perm Regional Court, 30/04/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention (15 days) imposed on the applicant by the trial court for an administrative offence was executed immediately; on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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9.	43835/21 10/08/2021	**Ilya Konstantinovich YEFIMOV** 2001	Yelanchik Oleg Aleksandrovich Moscow	Rally in support of Mr A. Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 15 days	Moscow City Court 10/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.00 p.m. on 02/02/2021 to 6.00 p.m. on 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 10/02/2021.	5,000
10.	44181/21 25/08/2021	**Vsevolod Sergeyevich POPOV** 1996	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally in support of Mr A. Navalnyy Tyumen 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Tyumen Regional Court 15/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. and 6.30 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Tyumen Regional Court, 15/03/2021.	4,000
11.	45002/21 24/08/2021	**Pavel Vladimirovich KOSULNIKOV** 1981	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Kazan 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of Tatarstan 24/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. on 23/01/2021 to 3.00 p.m. on 25/01/2021.	4,000

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12.	46947/21 14/09/2021	**Alena Igorevna PERTSEVA** 1999	Eysmont Mariya Olegovna Moscow	Rally in support of Mr A. Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 22/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.30 p.m. on 02/02/2021 to 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 22/03/2021.	5,000
13.	48161/21 15/09/2021	**Aleksandr Yevgenyevich CHERNYKH** 1985	Gamazov Alan Olegovich Moscow	Rally support of journalist Ivan Safronov Moscow 13/07/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from on 2.50 p.m. to 06.10 p.m. on 13/07/2020, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 16/03/2021.	4,000
14.	50257/21 23/09/2021	**Yevgeniy Vyacheslavovich BELYAKOV** 1993	Shindyapin Arkadiy Vitalyevich Moscow	Rally in support of Mr A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 17/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 2.30 p.m. on 31/01/2021 to an unspecified time on 01/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 17/05/2021.	4,000

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15.	50278/21 24/09/2021	**Yuliya Andreyevna SAVELYEVA** 1999	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Rally in support of Mr A. Navalnyy Petrozavodsk 21/04/2021	article 20.2 § 8 of CAO	administrative detention of 10 days	Supreme Court of the Karelia Republic 01/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 10.00 a.m. to 2.15 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Supreme Court of the Karelia Republic, 24/03/2021 and 01/05/2021, Art. 10 (1) - conviction for making calls to participate in public events - Conviction under article 20.2 § 2 of the CAO for calls to participate in unauthorised manifestation in support of Navalnyy on 31/01/2021 in Petrozavodsk to 5 days of administrative detention. Final decision: Supreme Court of the Karelia Republic, 24/03/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentences of administrative detention imposed on the applicant were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
16.	50293/21 29/09/2021	**Bogdan Aleksandrovich BUBNOV** 1999	Valenkov Andrey Olegovich Nizhniy Novgorod	Rally in support of Mr A. Navalnyy Nizhniy Novgorod 23/01/2021	article 20.2 § 2 of CAO	administrative detention of 2 days	Nizhniy Novgorod Regional Court 31/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 11.30 a.m. on 31/01/2021 to 1.00 p.m. on 02/02/2021; - from 7.45 p.m. on 24/02/2022 to 6.00 p.m. on 25/02/2022;	5,000

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				Rally against war in Ukraine Nizhniy Novgorod 24/02/2022	article 20.2 § 6.1 of CAO	administrative detention of 5 days	Nizhniy Novgorod Regional Court 02/03/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Nizhniy Novgorod Regional Court, 31/03/2021 and 02/03/2022.	
17.	51896/21 24/09/2021	**Dmitriy Aleksandrovich LYUTOYEV** 1984	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Rally in support of Mr A. Navalnyy Syktyvkar 23/01/2021 Rally in support of Mr A. Navalnyy Syktyvkar 31/01/2021	article 20.2 § 5 of CAO article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	fine of RUB 10,000 administrative detention of 4 days and fine of RUB 10,000	Supreme Court of the Komi Republic 23/06/2021 Supreme Court of the Komi Republic, 24/03/2021 and 16/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 12.05 a.m. on 31/01/2021 to 11.00 a.m. on 01/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Supreme Court of the Komi Republic, 24/03/2021, 16/06/2021 and 23/06/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 01/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event on 31/01/2021: under article 19.3 § 1 (administrative detention), and under article 20.2 § 5 of the CAO (fine).	5,000
18.	51994/21 08/10/2021	**Aleksandr Borisovich POCHINSKIY** 1987	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 11/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 11/05/2021.	3,500

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19.	51995/21 08/10/2021	**Dmitriy Nikolayevich SEMIN** 1996	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 11/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 9.30 a.m. to 2.20 p.m. on 02/02/2021 Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 11/05/2021	4,000
20.	52824/21 22/10/2021	**Alla Vladimirovna KUZNETSOVA** 1967	Zhdanov Ivan Yuryevich Vilnius	Rally in support of Mr A. Navalnyy Ulan-Ude, Buryatia Republic 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Supreme Court of the Buryatia Republic 29/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Supreme Court of the Buryatia Republic, 29/04/2021.	3,500
21.	53232/21 05/10/2021	**Zhanna Vladimirovna GALEYEVA** 1996	Tseytlina Olga Pavlovna St Petersburg	Rally in support of Belarus citizens St Petersburg 27/01/2021 Rally in support of Belarus citizens St Petersburg 24/01/2021	article 20.2 § 2 of CAO article 20.2 § 2 of CAO	administrative detention of 1 day administrative detention of 5 days	St Petersburg City Court 27/05/2021 St Petersburg City Court 06/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 9.40 a.m. on 23/03/2021 to 25/03/2021, hearing in the applicant's administrative-offence case, - from 9.40 a.m. on 28/03/2021 to 11.00 a.m. on 29/03/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: St Petersburg City Court, 06/04/2021 and 27/05/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentences of administrative detention imposed on the applicant were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
22.	53293/21 07/10/2021	**Anton Sergeyevich REUTOV** 1990	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Rally in support of Mr A. Navalnyy Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 07/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": from 1.00 p.m. on 31/01/2021 (the applicant spent two hours in the police van) to 4.15 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Nizhniy Novgorod Regional Court, 07/04/2021.	4,000
23.	53485/21 07/10/2021	**Aleksey Igorevich BORISOV** 2002	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Rally in support of Mr A. Navalnyy Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 07/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.15 p.m. on 31/01/2021 to 5.00 p.m. on 01/02/2021 Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Nizhniy Novgorod Regional Court, 07/04/2021	4,000
24.	53491/21 07/10/2021	**Ivan Vasilyevich SOKOLOVSKIY** 1997	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Rally in support of Mr A. Navalnyy Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 07/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.50 a.m. on 31/01/2021 (the applicant spent more than 3 hours in the police van) to 3.00 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Nizhniy Novgorod Regional Court, 07/04/2021	
25.	61701/21 10/12/2021	**Sergey Petrovich KUKHTIN** 1971	Memorial Human Rights Centre Moscow	Rally in support of Mr A. Navalnyy Moscow 31/01/2021 Rally against the war in Ukraine Moscow 06/03/2022	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 administrative detention of 15 days	Moscow City Court 25/08/2021 Moscow City Court 19/08/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 1.15 p.m. to 11.58 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Moscow City Court, 25/08/2021 and 19/08/2022; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

[1] Plus any tax that may be chargeable to the applicants.